

PROFESSIONAL SOFTWARE DEVELOPMENT AND MAINTENANCE AGREEMENT

Sample contract for keyword grouping, evidence extraction, and exact text validation

This Professional Software Development and Maintenance Agreement (the "Agreement") is entered into by and between Orion Digital Solutions Pte. Ltd., a Singapore company with its principal office at 18 Marina View, Singapore 018960 ("Service Provider"), and Lotus Retail Group Joint Stock Company, a Vietnamese company with its principal office at 45 Nguyen Hue Street, District 1, Ho Chi Minh City, Vietnam ("Client"). Service Provider and Client may be referred to individually as a "Party" and collectively as the "Parties".

Key Field	Value
Agreement Date	March 15, 2026
Effective Date	April 1, 2026
Commencement Date	April 1, 2026
Start Date	April 1, 2026
Initial Term	Twelve (12) months
End Date	March 31, 2027
Expiration Date	March 31, 2027
Governing Law	Laws of Vietnam
Primary Contact - Client	procurement@lotusretail.vn
Primary Contact - Service Provider	delivery@oriondigital.sg

1. Definitions

1.1 "Deliverables" means the software modules, source code, configuration files, technical documentation, test scripts, deployment packages, user manuals, reports, and other work product that Service Provider is required to deliver under this Agreement or an approved Statement of Work.

1.2 "Confidential Information" means all non-public technical, business, financial, operational, customer, pricing, security, and product information disclosed by either Party, whether disclosed orally, visually, electronically, or in writing.

1.3 "Acceptance Criteria" means the functional, technical, performance, security, and documentation requirements that a Deliverable must satisfy before Client is required to accept it.

1.4 "Service Levels" or "SLA" means the support response time, resolution target, uptime commitment, and maintenance obligations described in Section 8 of this Agreement.

2. Term, Effective Date, and Expiration

2.1 The Effective Date of this Agreement is April 1, 2026. The Commencement Date and Start Date are also April 1, 2026.

2.2 The Initial Term begins on the Effective Date and continues for twelve (12) months unless terminated earlier in accordance with this Agreement.

2.3 The End Date of the Initial Term is March 31, 2027. The Expiration Date will be March 31, 2027 unless this Agreement is renewed or extended by written agreement of the Parties.

2.4 For clarity, the Effective Date, Commencement Date, and Start Date refer to the beginning of the contractual relationship, while the End Date and Expiration Date refer to the end of the Initial Term.

3. Scope of Services

3.1 Service Provider shall design, develop, configure, test, deploy, and maintain a cloud-based retail operations platform for Client. The services include business analysis, solution architecture, backend API development, frontend dashboard development, database schema design, integration with Client systems, technical documentation, and post-deployment maintenance.

3.2 Service Provider shall provide monthly maintenance, bug fixing, security patching, minor enhancements, release notes, production support, and knowledge transfer sessions to Client personnel.

3.3 The services do not include hardware procurement, third-party license fees, payment gateway fees, cloud infrastructure costs, or major scope changes unless expressly included in an approved Change Request.

4. Deliverables, Milestones, and Acceptance

4.1 Service Provider shall deliver the Deliverables according to the project plan and milestone schedule approved by the Parties. The initial milestone schedule includes: Discovery Completion by April 15, 2026; Prototype Delivery by May 15, 2026; User Acceptance Testing Release by June 15, 2026; and Production Go-Live by July 15, 2026.

4.2 Client shall review each Deliverable within ten (10) business days after receipt. If Client reasonably determines that a Deliverable does not meet the Acceptance Criteria, Client must provide written rejection details identifying the specific non-conformity.

4.3 If Client does not accept or reject a Deliverable within the review period, the Deliverable will be deemed accepted. Acceptance does not waive Service Provider's warranty obligations or support obligations under this Agreement.

5. Fees, Payment Terms, Invoices, and Taxes

5.1 Client shall pay Service Provider a fixed implementation fee of USD 48,000 and a monthly maintenance fee of USD 3,500 beginning after Production Go-Live.

5.2 Service Provider shall issue invoices according to the milestone schedule and, for maintenance services, on the first business day of each month. Payment is due within fifteen (15) days after the invoice date.

5.3 Any undisputed late payment will accrue interest at one percent (1%) per month or the maximum rate permitted by applicable law, whichever is lower.

5.4 Fees are exclusive of value-added tax, withholding tax, bank transfer fees, and other taxes unless otherwise stated. Each Party shall be responsible for taxes imposed on it by applicable law.

6. Renewal, Extension, and Non-Renewal Notice

6.1 This Agreement shall automatically renew for successive one-year renewal terms unless either Party gives written notice of non-renewal at least forty-five (45) days before the end of the then-current term.

6.2 Any renewal term will follow the same commercial and legal terms unless the Parties agree otherwise in a written amendment signed by authorized representatives.

6.3 Either Party may propose an extension of scope or term by submitting a written Change Request. An extension is not effective unless approved in writing by both Parties.

7. Termination and Suspension

7.1 Either Party may terminate this Agreement for convenience by giving sixty (60) days written notice to the other Party.

7.2 Either Party may terminate this Agreement for material breach if the breaching Party fails to cure the breach within fifteen (15) business days after receiving written notice describing the breach in reasonable detail.

7.3 Service Provider may suspend non-critical services if Client fails to pay undisputed overdue amounts within ten (10) business days after receiving a late payment notice. Suspension does not waive Service Provider's right to collect outstanding amounts.

7.4 Upon termination or expiration, Service Provider shall provide reasonable transition assistance for up to thirty (30) days at the then-current professional services rates, unless termination resulted from Client's uncured payment breach.

8. Service Levels, Support, and Maintenance

8.1 Service Provider shall provide support from Monday to Friday, 9:00 a.m. to 6:00 p.m. Vietnam time, excluding public holidays. Critical production incidents must receive an initial response within two (2) hours.

8.2 Service Provider shall use commercially reasonable efforts to maintain monthly platform availability of 99.5%, excluding scheduled maintenance, emergency maintenance, Client-caused downtime, third-party cloud provider outages, and force majeure events.

8.3 Bug fixes will be prioritized by severity. Critical defects affecting core retail transactions will be addressed first, followed by high, medium, and low severity defects.

9. Change Requests

9.1 Any requested change to scope, timeline, fees, Deliverables, Acceptance Criteria, integration requirements, or service levels must be documented in a written Change Request.

9.2 A Change Request must describe the requested change, business reason, impact on fees, impact on schedule, technical assumptions, and any dependencies. No Change Request is binding unless approved in writing by both Parties.

10. Confidentiality and Non-Disclosure

10.1 Each Party shall protect the other Party's Confidential Information using at least the same degree of care it uses to protect its own similar confidential information, and in no event less than reasonable care.

10.2 Confidential Information may be used only for purposes of performing obligations under this Agreement and may not be disclosed to any third party without prior written consent, except to employees, contractors, professional advisers, or affiliates who have a need to know and are bound by confidentiality obligations.

10.3 The confidentiality obligations do not apply to information that is publicly available without breach, already known without restriction, independently developed without use of Confidential Information, or rightfully received from a third party without confidentiality obligations.

11. Data Protection and Security

11.1 Service Provider shall implement reasonable administrative, technical, and organizational safeguards designed to protect Client Data against unauthorized access, loss, misuse, alteration, or disclosure.

11.2 Service Provider shall notify Client without undue delay after becoming aware of a confirmed security incident involving Client Data. The notice must include, to the extent known, the nature of the incident, affected systems, mitigation actions, and proposed remediation steps.

11.3 Service Provider shall not use Client Data for training public AI models, marketing, resale, or any purpose unrelated to providing the services unless Client gives prior written consent.

12. Intellectual Property Rights and License

12.1 Subject to full payment of all undisputed fees, Client will own the custom Deliverables created specifically for Client under this Agreement, excluding Service Provider's pre-existing tools, libraries, templates, reusable components, know-how, methodologies, and general skills.

12.2 Service Provider grants Client a perpetual, non-exclusive, worldwide, royalty-free license to use any embedded Service Provider background technology solely as incorporated in the Deliverables and solely for Client's internal business operations.

12.3 Service Provider retains ownership of its pre-existing intellectual property, reusable software components, automation scripts, diagnostic tools, frameworks, and general development know-how.

13. Warranties and Disclaimers

13.1 Service Provider warrants that the services will be performed in a professional and workmanlike manner by personnel with appropriate skill and experience.

13.2 Service Provider warrants that, for ninety (90) days after acceptance, the Deliverables will materially conform to the applicable Acceptance Criteria when used in accordance with the documentation.

13.3 Except as expressly stated in this Agreement, Service Provider disclaims all implied warranties, including warranties of merchantability, fitness for a particular purpose, and non-infringement to the maximum extent permitted by law.

14. Indemnification

14.1 Service Provider shall defend, indemnify, and hold harmless Client against third-party claims alleging that the custom Deliverables infringe a third party's intellectual property rights, provided that Client promptly notifies Service Provider, gives reasonable cooperation, and allows Service Provider to control the defense and settlement.

14.2 Service Provider has no indemnification obligation for claims arising from Client materials, unauthorized modifications, use of the Deliverables outside the documentation, or combination with products or services not provided by Service Provider.

14.3 Client shall indemnify Service Provider against claims arising from Client Data, Client materials, Client's breach of law, or Client's unauthorized use of the Deliverables.

15. Limitation of Liability

15.1 The total liability of either Party arising out of or related to this Agreement shall not exceed the total fees paid or payable by Client to Service Provider during the six (6) months immediately preceding the event giving rise to the claim.

15.2 Neither Party shall be liable for indirect, incidental, special, punitive, exemplary, or consequential damages, or for loss of profits, loss of revenue, loss of goodwill, or loss of data, even if advised of the possibility of such damages.

15.3 The liability cap does not apply to payment obligations, confidentiality breaches, data protection breaches, intellectual property infringement indemnity obligations, fraud, willful misconduct, or liability that cannot be limited under applicable law.

16. Audit Rights and Records

16.1 During the term and for two (2) years after termination or expiration, each Party shall maintain accurate records reasonably necessary to verify compliance with this Agreement.

16.2 Client may audit Service Provider's relevant service records once per calendar year upon at least fifteen (15) business days prior written notice, provided the audit is conducted during normal business hours and does not unreasonably disrupt Service Provider's operations.

17. Subcontracting and Assignment

17.1 Service Provider may use qualified subcontractors to perform portions of the services, provided that Service Provider remains responsible for the acts and omissions of its subcontractors.

17.2 Neither Party may assign this Agreement without the prior written consent of the other Party, except to an affiliate or successor in connection with a merger, reorganization, or sale of substantially all assets.

18. Force Majeure

18.1 Neither Party will be liable for delay or failure to perform caused by events beyond its reasonable control, including natural disasters, war, terrorism, civil unrest, epidemic, government action, labor disruption, internet outage, cloud provider outage, or power failure.

18.2 The affected Party must notify the other Party as soon as reasonably practicable and use commercially reasonable efforts to mitigate the impact of the force majeure event.

19. Governing Law and Dispute Resolution

19.1 This Agreement shall be governed by and interpreted in accordance with the laws of Vietnam, without regard to conflict-of-law principles.

19.2 Any dispute arising out of or relating to this Agreement shall first be resolved through good-faith negotiation between senior representatives of the Parties within thirty (30) days after written notice of dispute.

19.3 If the dispute is not resolved through negotiation, the dispute shall be submitted to arbitration at the Vietnam International Arbitration Centre (VIAC) in Ho Chi Minh City. The arbitration language shall be English, and the arbitral award shall be final and binding.

20. Notices

20.1 All notices under this Agreement must be in writing and delivered by email with confirmation of receipt, registered mail, courier, or personal delivery to the addresses stated in this Agreement or any updated address notified in writing.

20.2 Notices to Client must be sent to legal@lotusretail.vn with a copy to procurement@lotusretail.vn. Notices to Service Provider must be sent to legal@oriondigital.sg with a copy to delivery@oriondigital.sg.

21. Entire Agreement, Order of Precedence, and Amendments

21.1 This Agreement, together with any signed Statement of Work, Change Request, exhibit, or amendment, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior proposals, discussions, and agreements.

21.2 If there is a conflict between this Agreement and a Statement of Work, the Statement of Work controls only for the specific project scope described in that Statement of Work. Any amendment must be in writing and signed by authorized representatives of both Parties.

22. Signatures

By signing below, the Parties confirm that they have read, understood, and agreed to be bound by this Agreement.

Service Provider: Orion Digital Solutions Pte. Ltd.

Authorized Representative: _____

Name: _____

Title: _____

Signature Date: _____

Client: Lotus Retail Group Joint Stock Company

Authorized Representative: _____

Name: _____

Title: _____

Signature Date: _____